The inherent or reasonable tendency criterion has been established for constructive contempt for a period of two hundred years or more.

Whereas the federal statute made "obstruction" the test, the California Penal Code made "direct tendency" the test. The codifiers incorporated not only "tendency" as a criterion for acts which must be actually obstructive under the federal statute, but also adopted the common law as to contempts generally. The California decisions have uniformly held this to be the proper criterion, sometimes referring to the statute and sometimes to the inherent power of the court. *Matter of Tyler,* 64 Cal. 434, 438; *Ex parte Barry,* 85 Cal. 603, 607; *In re Shortridge,* 99 Cal. 526, 532, 533; *In re Shuler,* 210 Cal. 402; *In re Lindsley,* 75 Cal. App. 124; *Lindsley* v. *Superior Court,* 76 Cal. App. 428; *In re San Francisco Chronicle,* 1 Cal. 2d 637.

The clear and present danger doctrine has never found its way into the law of contempt.

Nye v. *United States,* 313 U. S. 33, dealt only with the effect of the federal statute which defines the method of procedure for punishment of various types of contempt and limits those which may be summarily dealt with.

Section 1209 of the California Code of Civil Procedure writes the common-law doctrine of reasonable tendency into the statutes of California. If the statutory test be adequate from a constitutional standpoint, the evidence will not be reviewed except for the limited purpose of determining whether, as expressed in the *Milk Wagon Drivers Union* case, 312 U. S. 287, the conviction rests upon "insubstantial findings of fact" amounting to "a palpable evasion of the Constitutional guaranty."

But if the reasonable tendency criterion be considered independently of the California statutes, it possesses, aside from its ancient lineage, adequate certainty to meet the demands of due process. Cf. *Herndon* v. *Lowry,* 301 U. S. 242.